COMPANY AGREEMENT

Texas Limited Liability Company · Member-Managed

This Texas Limited Liability Company, Company Agreement (this "**Agreement**") is entered into as of **June 6, 2026** (the "**Effective Date**") by and among the Members listed on **Schedule 1** (each, a "**Member**", and collectively, the "**Members**").

This Agreement is intended to constitute a "company agreement" under the Texas Business Organizations Code (the "TBOC"), as it may be amended, and to govern the affairs of the Company and the conduct of its business.

1. Formation; Name; Offices; Registered Agent

1.1 Formation

The Members have formed a Texas limited liability company (the "**Company**") by filing a Certificate of Formation with the Texas Secretary of State under the TBOC.

1.2 Name

The name of the Company is **Celerity Energy LLC**

1.3 Principal Office

The principal office of the Company is **7030 FM 1488 Suite 108., Magnolia, Texas 77354** or such other place as determined under this Agreement.

1.4 Registered Agent and Registered Office

The Company's registered agent and registered office in Texas are:

- **Registered Agent: Fenwick How**
- **Registered Office: 28817 Dobbin Huffsmith Rd, Magnolia, Texas 77354**

1.5 Other Offices

The Company may maintain additional offices as the Members determine.

2. Purpose; Powers

2.1 Purpose

The purpose of the Company is to engage in **energy advisory and consulting services, including strategic, technical, commercial, and operational consultation for the assessment, development, financing, and advancement of energy, infrastructure, and industrial projects**, consultation for parties progressing all phases of energy project assessment and advancement. The CEA LLC role is purely advisory. We may elect to pursue other arrangements (equity participation in 3rd parties, for example) and any other lawful business permitted under the TBOC by separate addendum to this agreement.

2.2 Powers

The Company has all powers necessary or convenient to carry out its business and purposes, including all powers available to a Texas limited liability company under the TBOC.

3. Term

3.1 Term

The Company began on the date the Certificate of Formation was filed (or the later effective date stated in it) and will continue until dissolved and wound up in accordance with this Agreement and the TBOC.

4. Members; Percentage Interests

4.1 Members

The Members are the Persons listed on Schedule 1.

4.2 Percentage Interests

The Members' respective Percentage Interests (as defined below) are as set forth on Schedule 1. The Members intend that each Member holds an equal Percentage Interest of 33 1/3%.

4.3 Definitions

- **Percentage Interest** means, as to each Member, the percentage interest in the Company as set forth on Schedule 1, as adjusted from time to time in accordance with this Agreement.

4.4 No Third-Party Rights

No Person other than a Member has any ownership interest in the Company, except as expressly permitted by this Agreement.

5. Capital Contributions; Capital Accounts

5.1 Initial Capital Contributions

Each Member will contribute the amount and form of capital described on Schedule 1 (the "**Initial Capital Contributions**"). If any portion of a Member's Initial Capital Contribution is in the form of property or services, the Members agree that the value is as stated on Schedule 1 for capital account and tax purposes, subject to applicable tax rules.

5.2 Additional Capital Contributions

(a) No Obligation. The Members agree that ongoing operational expenses and services necessary to support and sustain the business will be funded from Company revenues. CEA LLC may provide additional support, with associated costs incurred on an as-needed basis as the business expands. At this time, an initial contribution of $1,000 per Member is contemplated as the sole capital contribution. No Member shall be required to make any additional capital contributions.

(b) Capital Calls. The Members may approve a capital call only with approval of Members holding at least **66 2/3%** of the Percentage Interests. A capital call approval must specify: (i) total amount; (ii) each Member's share (pro rata by Percentage Interests unless otherwise approved); (iii) form of contribution; and (iv) due date (not less than **30** days after notice).

(c) Failure to Contribute. If a Member fails to timely fund an approved capital call, then, to the extent permitted by the TBOC and applicable law, the non-defaulting Members may elect one or more of the following remedies (as specified in the capital call notice or by subsequent approval of Members holding at least 66 2/3%):

1. treat the unpaid amount as a loan to the defaulting Member bearing interest at **PRIME + 3%**, secured by the defaulting Member's interest to the extent permitted by law;
2. permit non-defaulting Members to fund the shortfall and receive a priority return/distribution from available cash (or other agreed adjustment) until repaid with interest;
3. dilute the defaulting Member's Percentage Interest based on a pre-agreed valuation method in Section 12 (Buy-Sell), applied as if the Company issued additional equity to the contributing Members; and/or
4. pursue any other remedy available at law or equity.

5.3 Capital Accounts

A capital account will be established and maintained for each Member in accordance with Treasury Regulations under Section 704(b) of the Internal Revenue Code (the "**Code**") (or any successor rules), as reasonably applied by the Company's tax advisor.

5.4 No Interest

No Member is entitled to interest on any capital contribution or on their capital account balance.

6. Allocations; Distributions; Tax Distributions

6.1 Allocations of Profits and Losses

(a) **General Rule.** Profits and losses of the Company for each fiscal year will be allocated among the Members **pro rata in accordance with their Percentage Interests**, except as otherwise required by the Code and applicable Treasury Regulations (including Section 704(c) and minimum gain rules).

(b) **Special Allocations.** Any special allocations required to comply with the Code and Treasury Regulations will be made in a manner intended to reflect the Members' economic arrangement.

6.2 Distributions (Non-Tax)

(a) **General Rule.** Subject to applicable law, Company liabilities, and reasonable reserves, available cash may be distributed at such times and in such amounts as determined by Members holding a majority of the Percentage Interests, and will be distributed **pro rata in accordance with Percentage Interests**.

(b) **Limitations.** No distribution will be made if it would violate the TBOC or would render the Company unable to pay its debts as they become due in the usual course.

6.3 Tax Distributions

(a) **Intent.** The Company intends to make distributions intended to enable Members to pay federal and state income taxes attributable to Company taxable income allocated to them.

(b) **Tax Distribution Amount.** For each calendar year, the Company will use commercially reasonable efforts to make quarterly (or other periodic) tax distributions to each Member equal to the product of: (i) the Member's estimated taxable income allocations from the Company for the period, multiplied by (ii) the **Tax Distribution Rate**.

(c) **Tax Distribution Rate.** The "**Tax Distribution Rate**" is the highest marginal federal income tax rate applicable to individuals for the applicable tax year (currently 37%), plus an additional 3% to account for the net investment income tax and any other applicable surtaxes, as determined without regard to the particular tax situation of any Member.

(d) **Netting.** Tax distributions are treated as advances against and will reduce amounts otherwise distributable to the Member under Section 6.2.

(e) **Reserves and Constraints.** Tax distributions are subject to available cash, lender covenants, and reasonable reserves.

7. Management; Authority; Duties

7.1 Member-Managed

The Company will be **member-managed** (as that concept is used under the TBOC). Each Member is an agent of the Company for purposes of its business, subject to the limitations in this Agreement and any Statement of Authority filed under the TBOC.

7.2 Authority in Ordinary Course

- **(a) Ordinary Course Decisions.** Actions in the ordinary course of business may be authorized by Members holding a **majority of the Percentage Interests**.
- **(b) Delegation.** The Members may appoint officers or delegates (e.g., President, Treasurer) and may delegate day-to-day operational authority, subject to limits set by the Members.

7.3 Major Decisions (Supermajority Approval)

The Company may not take any of the following actions without approval of Members holding at least **66 2/3%** of the Percentage Interests:

1. amend the Certificate of Formation or this Agreement (except where this Agreement expressly allows an update without supermajority);
2. admit a new Member or issue additional equity interests (including Units if used);
3. approve a merger, conversion, interest exchange, sale of all or substantially all assets, or similar transaction;
4. dissolve the Company or file for bankruptcy/insolvency protection (except where required by law);
5. incur indebtedness (including guarantees) outside the ordinary course in excess of **$1,000.00** in any single transaction or series of related transactions;
6. make any capital call (Section 5.2);
7. approve any related-party transaction with a Member or Affiliate (other than reimbursement per Section 7.8) that exceeds **$10,000.00** per year or is otherwise material;
8. approve an annual budget (if used) and any variance exceeding **$10,000.00**
9. change the Company's principal line of business or enter a materially different business;
10. commence litigation or settle litigation involving payments or commitments exceeding **$10,000.00** (excluding routine collections);
11. open or close bank accounts or change authorized signers (unless already authorized under a prior resolution);
12. elect to be taxed as a corporation (including an S corporation election) or make any material tax election outside the ordinary course;
13. approve compensation, bonuses, or other payments to Members for services exceeding **$1** other than distributions.

7.4 No Individual Authority for Extraordinary Matters

No Member acting alone may bind the Company with respect to any Major Decision.

7.5 Standard of Conduct; Fiduciary Duties

- **(a) General Standard.** Each Member will act in good faith and in a manner the Member reasonably believes to be in the best interests of the Company, and with the care an ordinarily prudent person in a like position would exercise under similar circumstances.
- **(b) Duty Modifications.** To the maximum extent permitted by the TBOC, this Agreement: (i) defines and limits the Members' duties as set forth in this Agreement; and (ii) eliminates monetary liability to the Company and the other Members for breach of duties, except for liability arising from fraud, willful misconduct, knowing violation of law, or a transaction from which the Member derived an improper personal benefit (to the extent such limitation is permitted by law).

(c) Conflict Transactions. A conflict-of-interest transaction is permitted if it is disclosed in reasonable detail and approved by Members holding at least 66 2/3% of the Percentage Interests (excluding the conflicted Member's interest only if required by applicable law), or if it is fair to the Company at the time it is authorized.

7.6 Time and Attention

Unless otherwise agreed, no Member is required to devote full time to the Company, and each Member may engage in other business activities, subject to confidentiality and IP obligations in this Agreement.

7.7 Compensation

The Co-Founders discussed and reached agreement on the revenue allocation framework codified herein. The agreed structure is as follows:

Structure A — Non-Founder SME: When no Co-Founder is serving in the SME role, the independent contractor engaged as SME shall receive seventy percent (70%) of their billable revenue. The remaining thirty percent (30%) shall be divided equally among the three Co-Founders at ten percent (10%) each.

Structure B — Co-Founder as SME: When one or more Co-Founders serve in the SME role, each such Co-Founder shall receive eighty percent (80%) of the revenue attributable to their individual billable time. The remaining twenty percent (20%) shall be allocated equally to the other two Co-Founders at ten percent (10%) each. All Co-Founders shall continue to share equally in the thirty percent (30%) allocation derived from non founder contractor SME billable hours.

Illustrative Examples: Example of Structure B - Co-Founder as SME: John J. Farrelly billing at $350/hr → nets $280/hr (80%) plus $7/hr (10% of the remaining $70) = $287/hr total. Fen How and Alejandro Guerra each net $31.50/hr. Example A - No Co-Founder as SME: External contractor SME billing at $300/hr → Contractor receives $210/hr (70%); each Co-Founder receives $30/hr (10%).

7.8 Reimbursement of Expenses

The Company will reimburse Members for reasonable and documented expenses incurred on behalf of the Company if: (a) approved in advance (if over **$25,000.00** or (b) otherwise within guidelines adopted by majority approval.

8. Meetings; Consents; Information Rights

8.1 Meetings

Meetings may be called by any Member holding at least **33 1/3%** of the Percentage Interests, on at least **14 business** days' notice stating the matters to be addressed.

8.2 Quorum

Members holding at least **66 2/3%** of the Percentage Interests constitute a quorum. However, the expressed intent is to have all three Members fully engaged in all business matters.

8.3 Participation

Members may participate by conference call or similar communication technology.

8.4 Action by Written Consent

Any action may be taken without a meeting by written consent (including electronic consent) of the Percentage Interests required to approve that action.

8.5 Books and Records; Inspection

(a) The Company will maintain books and records as required by the TBOC, including a current list of Members and their interests.

(b) Each Member (and their authorized representative) may inspect and copy Company records during normal business hours upon reasonable notice, subject to confidentiality and reasonable protections for sensitive information.

9. Banking; Accounting; Fiscal Matters

9.1 Bank Accounts

- Company funds must be held in accounts in the Company's name at **JPMorgan Chase Bank**

or as otherwise approved. Authorized signers are as approved by the Members from time to time.

9.2 Accounting Method; Fiscal Year

The Company will use the accounting method and fiscal/tax year determined by the Members, initially: **DECEMBER 31.**

9.3 Financial Statements and Reports

The Company will provide Members:

(a) quarterly management reports as reasonably available; and

(b) annual financial statements within **120** days after fiscal year end.

9.4 Tax Returns; K-1s

The Company will use commercially reasonable efforts to deliver Schedule K-1s (or equivalent) to Members by **MARCH 15** each year.

10. Tax Classification; Partnership Representative

10.1 Tax Classification

The Members intend that the Company be classified as a partnership for U.S. federal income tax purposes (unless it has a single owner at any time) and will not elect corporate taxation without approval as a Major Decision.

10.2 Partnership Representative

The Company designates **Alejandro Guerra** as the "partnership representative" (or "tax matters partner," if applicable under prior law) for purposes of Code audit rules. The partnership representative:

(a) may act on behalf of the Company in IRS audits and proceedings;

(b) will keep the Members reasonably informed; and

(c) will not settle or make binding elections that materially and adversely affect the Members in a disproportionate manner without approval of Members holding at least 66 2/3% of the Percentage Interests.

10.3 Audit Adjustments

If the Company is assessed imputed underpayment liability, the Members will cooperate to minimize entity-level taxes and to push out adjustments where available, consistent with the Code and applicable guidance.

11. Transfers; Restrictions; Rights of First Refusal/Offer; Admission

11.1 General Restriction

A Member may not Transfer (as defined below) all or any portion of their Company interest except as expressly permitted by this Agreement and approved in accordance with this Agreement. Any purported Transfer in violation of this Agreement is void to the fullest extent permitted by law.

11.2 Definition — Transfer

Transfer means any sale, assignment, pledge, encumbrance, hypothecation, gift, or other disposition (whether voluntary or involuntary, by operation of law or otherwise), including a transfer of an economic interest, and including a change of control of an entity Member.

11.3 Permitted Transfers

The following are Permitted Transfers, subject to Sections 11.5 and 11.6:

- **(a)** a Transfer to a Member's trust for estate planning purposes where the transferring Member remains the sole trustee with dispositive control (or remains the primary beneficiary and retains control as approved);
- **(b)** a Transfer to an Affiliate of a Member, if the transferee agrees in writing to be bound by this Agreement;
- **(c)** a pledge to a lender of the Member's economic rights only, if approved by Members holding at least 66 2/3% and the pledge does not grant management rights or rights to force a Transfer without complying with this Agreement.

11.4 Right of First Refusal (ROFR)

- **(a) Trigger.** If a Member (the **Selling Member**) receives a bona fide third-party offer to purchase all or a portion of the Selling Member's interest that the Selling Member wishes to accept, the Selling Member must first offer the interest to the Company and then to the non-selling Members on the same terms.
- **(b) Notice.** The Selling Member must deliver a written notice (the **ROFR Notice**) including the proposed buyer, interest to be transferred, price, material terms, and closing date.
- **(c) Company Option.** The Company has **30** days to elect to purchase all (or a portion) of the offered interest on the offered terms.
- **(d) Member Option.** If the Company does not elect to purchase all offered interest, the non-selling Members have an additional **30** days to elect to purchase the remaining offered interest pro rata (or as they otherwise agree) on the offered terms.
- **(e) Closing.** Closing will occur within **60** days after election, subject to reasonable extension to obtain required consents.
- **(f) Third-Party Sale.** If neither the Company nor the non-selling Members elect to purchase all offered interest, the Selling Member may sell to the third party on terms no more favorable than those offered, within **120** days, and only if the transferee agrees to be bound by this Agreement (as applicable).

11.5 Admission of Transferees as Members

A transferee will not be admitted as a Member (i.e., will not receive governance/voting rights) unless approved as a Major Decision and the transferee executes a joinder agreeing to be bound by this Agreement.

11.6 Substituted Member; Economic Interest Only

Unless admitted as a Member, a transferee is only an assignee of economic rights and has no right to participate in management, vote, inspect records (except as required by law), or exercise other Member rights.

11.7 Legends; Compliance

Transfers must comply with securities laws and any legends or restrictions reasonably imposed to ensure compliance.

12. Buy-Sell Events (Death, Disability, Bankruptcy, and Other Trigger Events)

12.1 Triggering Events

Each of the following is a **Buy-Sell Event** with respect to a Member (the **Affected Member**):

- **(a)** death;
- **(b)** Disability (as defined below) continuing for ***120*** consecutive days;
- **(c)** bankruptcy, insolvency, or assignment for benefit of creditors;

(d) a material uncured breach of this Agreement after notice and cure period under Section 18.3 (if applicable); or

(e) attempted prohibited Transfer.

12.2 Disability Definition

Disability means the Member's inability to substantially perform customary duties for the Company by reason of physical or mental impairment, as determined by an independent physician reasonably acceptable to the Company and the Member (or their representative).

12.3 Purchase Right/Obligation

Upon a Buy-Sell Event, the Company will have the option (and if it declines, the non-affected Members will have the option) to purchase the Affected Member's interest, by written notice within **30** days after the Company receives notice of the event.

12.4 Valuation

The purchase price will be determined under the following method (the **Valuation Method**): *[E.G., (I) AGREED VALUE UPDATED ANNUALLY; OR (II) APPRAISAL BY INDEPENDENT APPRAISER; OR (III) MULTIPLE OF EBITDA/REVENUE; OR (IV) FORMULA]*. If the Members have executed an agreed value certificate, that value controls unless it is older than *[12–24]* months, in which case appraisal applies.

12.5 Payment Terms

Unless otherwise agreed:

(a) *[__%]* paid at closing; balance evidenced by a promissory note payable over *[24–60]* months at interest *[RATE OR PRIME + __%]*;

(b) the note may be prepaid without penalty;

(c) the Company may offset amounts owed by the Affected Member to the Company against the purchase price to the extent permitted by law.

12.6 Closing Mechanics

Closing will occur within **90** days after price is determined. The Affected Member (or estate/guardian) will deliver customary assignment documents free of liens (other than permitted pledges.

12.7 Insurance

The Company may (but is not required to) maintain life and/or disability insurance on Members in such amounts as approved as a Major Decision. Insurance proceeds may be used to fund buyouts.

12.8 Effect of Buyout

Upon closing, the purchased interest is canceled or redistributed as determined by the purchasing party, and Schedule 1 will be updated accordingly.

13. Confidentiality

13.1 Confidential Information

Each Member must keep confidential all non-public information regarding the Company or its business, customers, suppliers, finances, technology, and strategy ("**Confidential Information**").

13.2 Permitted Disclosures

A Member may disclose Confidential Information:

(a) to the Member's attorneys, accountants, and advisors who are bound by confidentiality obligations;

(b) as required by law, subpoena, or court order, provided the Member (to the extent legally permitted) gives prompt notice to the Company and cooperates in seeking protective treatment; or

(c) with approval of Members holding at least 66 2/3% of the Percentage Interests.

13.3 Return/Destruction

Upon request or upon a Member's dissociation, the Member will promptly return or destroy Confidential Information in their possession, except that one archival copy may be retained solely for legal compliance.

13.4 Survival

These confidentiality obligations survive withdrawal/dissociation and dissolution for **3** years (or longer for trade secrets, as long as they remain trade secrets).

14. Intellectual Property; Work Product (If Applicable)

14.1 Scope

This Section applies to the extent any Member creates or contributes inventions, software, content, branding, know-how, processes, or other work product in connection with the Company (collectively, "**Work Product**").

14.2 Company Ownership

All Work Product created for the Company or using Company resources, or within the scope of Company business, is owned by the Company to the fullest extent permitted by law.

14.3 Assignment

Each Member hereby assigns (and will cause their personnel/contractors to assign) to the Company all right, title, and interest in and to such Work Product, including all intellectual property rights.

14.4 Further Assurances

Each Member will execute documents and take actions reasonably requested to perfect or enforce the Company's rights.

14.5 Moral Rights Waiver

To the maximum extent permitted, each Member waives and agrees not to assert moral rights in Work Product.

14.6 Background IP

If a Member contributes pre-existing IP ("**Background IP**"), the Member retains ownership, but grants the Company a perpetual, irrevocable, worldwide, royalty-free license to use, modify, and sublicense the Background IP as necessary to operate the Company's business, unless otherwise agreed in writing.

15. Limitation of Liability; Indemnification

15.1 Limitation of Liability

To the maximum extent permitted under the TBOC, no Member (or their Affiliates, officers, employees, or agents) will be liable to the Company or any Member for monetary damages for acts or omissions in connection with the Company, except to the extent arising from fraud, willful misconduct, knowing violation of law, or an improper personal benefit.

15.2 Indemnification

The Company will indemnify and hold harmless each Member and each Member's representatives (each, an "**Indemnified Person**") from and against claims, losses, liabilities, damages, and expenses (including reasonable attorneys' fees) arising out of or relating to the Company, except to the extent resulting from the Indemnified Person's fraud, willful misconduct, or knowing violation of law.

15.3 Advancement

The Company will advance expenses to an Indemnified Person in defending a claim, subject to an undertaking to repay amounts advanced if it is determined the Indemnified Person is not entitled to indemnification.

15.4 Non-Exclusivity

Indemnification rights are in addition to any other rights available under law, the Certificate of Formation, or insurance.

16. Insurance

16.1 Coverage

The Company shall maintain commercially reasonable insurance coverage, which may include general liability, professional liability (if applicable), cyber liability (if applicable), and key person insurance (if applicable), with limits of at least such amounts as are customary for similarly situated businesses and as may be required by the Company’s advisors, counterparties, or clients, as determined by the Members as a Major Decision.

17. Dispute Resolution; Venue; Attorneys' Fees

17.1 Good Faith Negotiation

The Members will first attempt in good faith to resolve any dispute arising out of this Agreement through informal discussions.

17.2 Mediation

If not resolved within 30 days, any Member may demand non-binding mediation administered by **qualified mediator** in **Houston,** Texas, unless the Members agree otherwise.

17.3 Litigation / Arbitration

Any dispute, claim, or controversy arising out of or relating to this Agreement shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) in accordance with its Commercial Arbitration Rules. The arbitration shall take place in Harris County, Texas, and judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof. The arbitrator shall have the authority to award injunctive relief and attorneys’ fees as provided in Section 17.5.

17.4 Injunctive Relief

A Member may seek temporary or preliminary injunctive relief in a court of competent jurisdiction to protect Confidential Information or IP without waiving dispute resolution requirements for merits.

17.5 Attorneys' Fees

The prevailing party in any action or proceeding arising out of this Agreement is entitled to recover reasonable attorneys' fees and costs.

17.6 Governing Law; Venue

This Agreement is governed by Texas law (without regard to conflicts rules). Subject to Section 17.3, exclusive venue for court proceedings will be state courts in **Harris** County, Texas, or the U.S. District Court for the applicable district.

18. Dissolution; Winding Up

18.1 Dissolution Events

The Company will dissolve upon the first to occur of:

(a) approval by Members holding at least 66 2/3% of the Percentage Interests;

(b) entry of a decree of judicial dissolution under the TBOC;

(c) sale of all or substantially all Company assets (unless the Members elect to continue the Company); or

(d) any other event requiring dissolution under the TBOC.

18.2 Winding Up

Upon dissolution, the Company will wind up its affairs in an orderly manner. The Members may appoint a liquidating representative by 66 2/3% approval. The liquidating representative will:

(a) collect and liquidate assets;

(b) discharge or provide for liabilities, including reserves for contingent liabilities;

(c) distribute remaining assets as provided in Section 18.3; and

(d) file any required certificates with the Texas Secretary of State.

18.3 Liquidation Distributions

After payment (or adequate provision) for Company debts and liabilities:

(a) amounts will first be paid to Members to the extent of any unpaid loans to the Company;

(b) then, remaining proceeds will be distributed to Members **pro rata in accordance with their positive capital account balances**, after taking into account allocations for the taxable year of liquidation, to the extent required by Code Section 704(b) principles; and

(c) to the extent not inconsistent with applicable tax rules, distributions will be made in accordance with Percentage Interests.

19. Notices

19.1 Notice Methods

Notices under this Agreement must be in writing and delivered by: (a) personal delivery; (b) certified mail (return receipt requested); (c) nationally recognized overnight courier; or (d) email.

19.2 Deemed Receipt

Notices are deemed received: (a) upon delivery if personally delivered; (b) three business days after mailing; (c) one business day after deposit with overnight courier; or (d) upon email transmission if sent during normal business hours of the recipient (otherwise next business day), provided no bounce-back or failure notice is received.

19.3 Addresses for Notice

Notices must be sent to the addresses (and emails) on Schedule 1 (as updated by notice).

20. Miscellaneous

20.1 Amendments

Amendments require approval of Members holding at least 66 2/3% of the Percentage Interests, except that the Company may update Schedule 1 to reflect: (a) an approved Transfer; (b) an admission; or (c) an address/email change notified under Section 19, without further amendment.

20.2 Entire Agreement

This Agreement (including Schedule 1) constitutes the entire agreement among the Members regarding the subject matter and supersedes prior understandings.

20.3 Severability

If any provision is held unenforceable, the remainder will remain in effect, and the provision will be reformed to the minimum extent necessary to make it enforceable while preserving intent.

20.4 Counterparts; Electronic Signatures

This Agreement may be executed in counterparts, each of which is deemed an original. Electronic signatures and PDF copies are effective.

20.5 Further Assurances

Each Member will execute documents and take actions reasonably required to carry out this Agreement.

20.6 Headings

Headings are for convenience only and do not affect interpretation.

20.7 No Waiver

Failure to enforce any provision is not a waiver.

20.8 Construction

"Including" means "including without limitation." Singular includes plural and vice versa as context requires.

SCHEDULE 1

Members · Percentage Interests · Contributions · Notice Information

Member Name	Entity Type	Mailing Address	Email	Initial Capital Contribution	% Interest
Alejandro Guerra	**INDIVIDUAL**	7522 Drayton Ct, Sugar Land, TX 77479, USA	alejandro.guerra@yahoo.com	$1000.00	33 1/3%
Fenwick How	**INDIVIDUAL**	28817 Dobbin Huffsmith Rd, Magnolia, TX 77354, USA	fenhow@gmail.com	$1000.00	33 1/3%
John J. Farrelly	**INDIVIDUAL**	22902 Barrister Creek Drive, Tomball, TX 77377, USA	farrelly860@gmail.com	$1000.00	33 1/3%

Schedule 1 may be updated by the Company (without further Member approval) to reflect approved Transfers, admissions, or address/email changes as provided in Section 20.1.

Celerity™ Energy Advisors

SIGNATURES

By signing below, each undersigned agrees to be bound by this Agreement as of the Effective Date.

MEMBER: Alejandro Guerra

Signature:

Alejandro Guerra

Name: Alejandro Guerra

Date:

10-June-26

Address: 7522 Drayton Ct, Sugar Land, TX 77479, USA

Email: alejandro.guerra@yahoo.com

MEMBER: Fenwick How

Signature:

Fenwick How

Name: Fenwick How

Date:

06-Jun-26

Address: 28817 Dobbin Huffsmith Rd, Magnolia, TX 77354, USA

Email: fenhow@gmail.com

MEMBER: John J. Farrelly

Signature:

John J Farrelly

Name: John J. Farrelly

Date:

06-Jun-26

Address: 22902 Barrister Creek Drive, Tomball, TX 77377, USA

Email: farrelly860@gmail.com

Signature: John Farrelly
John Farrelly (Jun 9, 2026 13:46:06 CDT)

Email: jfarrelly@celerity.energy

Signature: Fenwick How

Email: fhow@celerity.energy

Signature: Alejandro Guerra
Alejandro Guerra (Jun 10, 2026 18:22:37 CDT)

Email: aguerra@celerity.energy

Celerity_Company_Agreement Final 6-June-26

Final Audit Report 2026-06-10

Created:	2026-06-06
By:	Fenwick How (fenhow@gmail.com)
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Document emailed to John Farrelly (jfarrelly@celerity.energy) for signature

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Document emailed to Alejandro Guerra (aguerra@celerity.energy) for signature

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Document emailed to Fenwick How (fhow@celerity.energy) for signature

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Email viewed by Fenwick How (fhow@celerity.energy)

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Document e-signed by Fenwick How (fhow@celerity.energy)

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Email viewed by Alejandro Guerra (aguerra@celerity.energy)

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